

THE NOTARIES RULES, 1956¹

In exercise of the powers conferred by section 15 of the Notaries Act, 1952 (53 of 1952), the Central Government hereby makes the following rules, namely:—

1. **Short title.**—These rules may be called the Notaries Rules, 1956.

2. **Definitions.**—In these rules, unless the context otherwise requires,—

(a) “appropriate Government” means, in relation to a notary appointed by the Central Government, the Central Government and in relation to a notary appointed by the State Government, the State Government;

(b) “Form” means a Form appended to these Rules;

(c) “the Act” means the Notaries Act, 1952 (53 of 1952);

²[(d) “Schedule” means the Schedule appended to these rules.]

³[3. **Qualifications for appointment as a notary.**—No person shall be eligible for appointment as a notary unless on the date of the application for such appointment—

⁴[(a) a person had been practising at least for ten years, or]

⁴[(aa) a person belonging to Scheduled Castes/Scheduled Tribes and other backward classes had been practising at least for seven years, or

(ab) a woman who had been practising at least for seven years, as a legal practitioner, or]

(b) he had been a member of the Indian Legal Service under the Central Government, or

(c) he had been at least for ten years,—

(i) a member of Judicial Service; or

(ii) held an office under the Central Government or a State Government requiring special knowledge of law after enrolment as an advocate; or

(iii) held an office in the department of Judge Advocate General or in the legal department of the armed forces.]

4. **Application for appointment as a notary.**—⁵[(1) A person may make an application for appointment as a notary (hereinafter called “the applicant”),

1. *Vide* S.R.O. 324, dated 14th February, 1956, published in the Gazette of India, Extra., Pt. II, Sec. 3, p. 191, dated 15th February, 1956.

2. *Ins.* by G.S.R. 330(E), dated 9th May, 2001 (w.e.f. 10-5-2001).

3. *Subs.* by G.S.R. 370(E), dated 8th July, 1997 (w.e.f. 8-7-1997).

4. *Subs.* by G.S.R. 17(E), dated 5th January, 2000 (w.e.f. 5-1-2000).

5. *Subs.* by G.S.R. 114(E), dated 24th February, 2009, for sub-rule (1) (w.e.f. 1-3-2009). Sub-rule (1), before substitution, stood as under:

“(1) A person may make an application for appointment as a notary (hereinafter called “the applicant”) in the Form of memorial addressed to such officer or authority (hereinafter referred to as the “competent authority”) of the appropriate Government as that Government may, by notification in the Official Gazette, designate in this behalf.”

through the concerned District Judge or the Presiding Officer of the Court or Tribunal where he practices as an Advocate, in the Form of memorial addressed to such officer or authority (hereinafter referred to as the "competent authority") of the appropriate Government as that Government may, by notification in the Official Gazette, designate in this behalf.]

¹[(2) The memorial shall be drawn by a person referred to in clause (a) of rule 3 in accordance with Form I and by a person referred to in clauses (b) and (c) of the said rule in accordance with Form II.

²[(2A) A person applying in Form II for appointment as a notary may submit the memorial direct to the Competent Authority of the Appropriate Government.]

(3) The memorial of a person referred to in clause (a) of rule 3 shall be signed by the applicant and shall be countersigned by the following persons:—

- (a) a Magistrate;
- (b) a Manager of a nationalised bank;
- (c) a merchant; and
- (d) two prominent inhabitants of the local area within which the applicant intends to practise as a notary.]

³[***]

⁴[6. **Preliminary action on application.**—⁵[(1) The competent authority shall examine every application received by him and if he is satisfied that the application is not complete in all respects or the applicant does not possess the qualifications specified in rule 3, or that any previous application of the applicant for appointment as a notary was rejected within six months before the date of the application, shall reject it summarily and inform the applicant accordingly.]

(2) If the competent authority does not reject the application under sub-rule (1),—

⁶[***]

(b) he may, if he thinks fit, ascertain from any Bar Council, Bar Association, Incorporated Law Society or other authority in the area where the applicant proposes to practise, the objections, if any, to the appointment of the applicant as notary, to be submitted within the time fixed for the purpose.]

7. Recommendation of the competent authority.—⁷[(1) The competent authority shall, after holding such inquiry as he thinks fit and after giving the

1. Subs. by G.S.R. 370 (E), dated 8th July, 1997 (w.e.f. 8-7-1997).

2. Ins. by G.S.R. 700(E), dated 24th September, 2009 (w.e.f. 24-9-2009).

3. Rule 5 omitted by G.S.R. 151, dated 14th March, 1958.

4. Subs. by G.S.R. 151, dated 14th March, 1958.

5. Subs. by G.S.R. 114(E), dated 24th February, 2009, for sub-rule (1) (w.e.f. 1-3-2009). Sub-rule (1), before substitution, stood as under:

"(1) The competent authority shall examine every application received by him and, if he is satisfied that the applicant does not possess the qualifications specified in rule 3, or that any previous application of the applicant for appointment as a notary was rejected within six months before the date of the application, shall reject it and inform the applicant accordingly."

6. Clause (a) omitted by G.S.R. 370 (E), dated 8th July, 1997 (w.e.f. 8-7-1997).

7. Subs. by G.S.R. 114(E), dated 24th February, 2009, for sub-rule (1) (w.e.f. 1-3-2009). Sub-rule (1), before substitution, stood as under:

"(1) The competent authority shall, after holding such inquiry as he thinks fit and after giving the applicant an opportunity of making his representations against the objections, if any, received within the time fixed under sub-rule (2) of rule 6, make a report to the appropriate Government recommending either that the application may be allowed for the whole or any part of the area to which the application relates or that it may be rejected."

applicant an opportunity of making his representations against the objections, if any, received within the time fixed under sub-rule (2) of rule 6, make a report to the appropriate Government recommending that the applicant may be allowed to appear before the Interview Board.]

(2) The competent authority shall also make his recommendation in the report under sub-rule (1) regarding the persons by whom the whole or any part of the costs of the application including the cost of hearing, if any, shall be borne.

(3) In making his recommendation under sub-rule (1), the competent authority shall have due regard to the following matters, namely:—

- (a) whether the applicant ordinarily resides in the area in which he proposes to practise as a notary;
- (b) whether, having regard to the commercial importance of the area in which the applicant proposes to practise and the number of existing notaries practising in the area, it is necessary to appoint any additional notaries for the area;
- (c) whether, having regard to his knowledge and experience of commercial law and the nature of the objections, if any, raised in respect of his appointment as a notary, and in the case of a legal practitioner also to the extent of his practice, the applicant is fit to be appointed as a notary;
- (d) where the applicant belongs to a firm of legal practitioners, whether, having regard to the number of existing notaries in that firm, it is proper and necessary to appoint any additional notary from that firm; and
- (e) where applications from other applicants in respect of the area are pending, whether the applicant is more suitable than such other applicants:

¹[Provided that in respect of categories (b) and (c), if the memorial in Form II is found to be in order, the competent authority may issue certificate of practice as Notary directly by exempting appearance before the Interview Board.]

²[7A. **Constitution of the Interview Board.**—(1) If the appropriate Government allows that the applicant may be asked to appear before the Interview Board, the competent authority shall inform the applicant to appear before the Interview Board, on the date, time and place fixed, to judge the competency of the applicant for being appointed as a Notary. The Interview Board shall submit its recommendations to the appropriate Government.

³[(2) For the said purpose, one or more Interview Boards shall be constituted by the appropriate Government from amongst its officers dealing with legal

1. Ins. by G.S.R. 429(E), dated 18th April, 2016 (w.e.f. 19-4-2016).

2. Ins. by G.S.R. 114(E), dated 24th February, 2009 (w.e.f. 1-3-2009).

3. Subs. by G.S.R. 700(E), dated 24th September, 2009, for sub-rule (2) (w.e.f. 24-9-2009). Sub-rule (2), before substitution, stood as under:

“(2) For the said purpose, a three members Interview Board shall be constituted by the appropriate Government from amongst its officers dealing with legal matters. The Chairperson of the Interview Board shall not be an officer below the rank of Joint Secretary of that Government.”

matters and the Chairperson of every Interview Board shall be an officer not below the rank of Joint Secretary or Law Officer of that Government:]]

³[Provided that the appropriate Government may dispense with the condition of holding of interviews for which reasons are to be recorded in writing.]

²[7B. **Transitional provision.**—(1) All the memorials received by the Competent Authority till 28th February, 2009 and which are pending shall be processed/examined in accordance with the provisions of the rules as amended by the Notaries (Amendment) Rules, 2009.

(2) The fresh memorials shall only be submitted on or after 1st July, 2009.]

8. Appointment of a notary.—³[(1) ⁴[On receipt of the recommendations of the interview board, the appropriate Government shall consider the recommendation and shall—]

(a) allow the application in respect of the whole of the area to which it relates; or

(b) allow the application in respect of any part of the area to which it relates; or

(c) reject the application,

and shall also make such orders as the Government thinks fit regarding the persons by whom the whole or any part of the cost of the application including the cost of hearing, if any, shall be borne.]

⁵[(2) An applicant shall be informed of every order passed by the appropriate Government under sub-rule (1).

(3) Any applicant whose application has been rejected ⁶[or allowed in respect of only a part of the area to which it relates] or against whom an order as to cost has been made under sub-rule (1) may, within sixty days of the date of the order apply to the appropriate Government for reviewing the order and that Government may, after making such further inquiry as it thinks fit pass such order as it considers necessary.]

⁷[(4)] Where the application is allowed, the appropriate Government shall appoint the applicant as a notary and direct his name to be entered in the Register of Notaries maintained by that Government under section 4 of the Act and issue to him a certificate on payment of prescribed fees authorizing him to practise in the area to which the application relates or in such part thereof as the appropriate Government may specify in the certificate, as a notary for a period of ⁸[five years] from the date on which the certificate is issued to him.

⁷[(4A) The appropriate Government may on and after the ninth day of May, 2001, appoint notaries in a State or Union territory, as the case may be, not exceeding the number of notaries specified in the Schedule:

1. Ins. by G.S.R. 429(E), dated 18th April, 2016 (w.e.f. 19-4-2016).

2. Ins. by G.S.R. 114(E), dated 24th February, 2009 (w.e.f. 1-3-2009).

3. Subs. by G.S.R. 151, dated 14th March, 1958.

4. Subs. by G.S.R. 114(E), dated 24th February, 2009, for "On receipt of the report of the competent authority, the appropriate Government shall consider the report and shall—" (w.e.f. 1-3-2009).

5. Ins. by G.S.R. 151, dated 14th March, 1958.

6. Ins. by G.S.R. 1056, dated 30th October, 1958.

7. Re-numbered by G.S.R. 151, dated 14th March, 1958.

8. Subs. by G.S.R. 262 (E), dated 28th March, 2000 (w.e.f. 28-3-2000).

7. Ins. by G.S.R. 330 (E), dated 9th May, 2001 (w.e.f. 10-5-2001).

Provided that the number of notaries whose certificate of practice has been renewed under sub-section (2) of section 5 of the Act shall be included in the total number of notaries appointed for the purpose of counting the total number of notaries specified in the Schedule:

Provided further that if in a State or Union territory the number of notaries appointed before the ninth day of May, 2001, exceeds the number of notaries specified in the Schedule, such notaries shall continue to be so appointed in that State or Union territory, as the case may be:]

¹[Provided also that in case, request for enhancement of quota is received from Union Territory or the State concerned, the same shall be considered as per the following criteria:—

- (a) if there is an increase in the population of the concerned State or the Union Territory;
- (b) if there is increase in the number of districts or tehsil or taluka of the concerned State or Union Territory.]

²[³(5)] The Register of Notaries shall be in Form IIA and the certificate of practice shall be in Form IIB.]

⁴[8A. Extension of area of practice.—A notary public who is already in possession of a certificate of practice in respect of a particular area, may for sufficient reasons, apply for extension of his area of practice. If the original certificate of practice had been issued by a State Government and the new area of practice applied for lies within the territory of that State, the application for extension of the area of practice shall be made to that State Government. In all cases where the original certificate of practice had been issued by the Central Government, the application for extension of the area of practice shall be made to the Central Government. Applications for the extension of the area of practice where the new area lies either wholly outside the State or partly inside and partly outside the State which granted the original certificate shall be made to the Central Government for the issue of a fresh certificate. The State Government or the Central Government, as the case may be, shall, after considering the reasons stated in the application and other factors, pass such orders thereon as it may deem fit. Any extension of the area of practice shall not have the effect of extending the period of validity of the original certificate beyond the period of ⁵[five years] specified in rule 8(4)].

⁶[8B. Renewal of Certificate of Practice.—The certificate of practice issued under sub-rule (4) of rule 8 may be renewed for a further period of five years on payment of prescribed fee. An application for renewal of Certificate of Practice shall be submitted to the appropriate Government before ⁷[six months] from the date of expiry of its period of validity:

Provided that the appropriate Government may, after considering the reasons stated in the application, relax the condition of submission of application for renewal of certificate of practice before the above specified period.]

1. Ins. by G.S.R. 429(E), dated 18th April, 2016 (w.e.f. 19-4-2016).

2. Ins. by S.R.O. 1353, dated 6th June, 1956.

3. Re-numbered by G.S.R. 1056, dated 30th October, 1958.

4. Ins. by G.S.R. 1056, dated 30th October, 1958.

5. Subs. by G.S.R. 262(E), dated 28th March, 2000 (w.e.f. 28-3-2000).

6. Ins. by G.S.R. 686(E), dated 31st October, 2007 (w.e.f. 31-10-2007).

7. Subs. by G.S.R. 150(E), dated 4th March, 2014, for "three months" (w.e.f. 4-3-2014).

¹[9. Fees for issue and renewal of certificate of practice and extension of area.—The fees for issue and renewal of certificate of practice and extension of area shall be as under,—

² [(a) issue of certificate of practice	—	₹ 2000
(b) extension of area of practice	—	₹ 1500
(c) renewal of certificate of practice	—	₹ 1000
(d) issue of a duplicate certificate of practice	—	₹ 750]

³[10. Fees payable to a notary for doing any notarial act.—⁴[(1) Every notary may charge fees not exceeding the rates mentioned below, namely:—

1. Subs. by G.S.R. 370 (E), dated 8th July, 1997 (w.e.f. 8-7-1997).
2. Subs. by G.S.R. 150(E), dated 4th March, 2014, for clauses (a) to (d) (w.e.f. 4-3-2014).
Clauses (a) to (d), before substitution, stood as under:
“(a) issue of certificate of practice—Rs. 1,000;
(b) extension of area of practice—Rs. 750;
(c) renewal of certificate of practice—Rs. 500;
(d) issue of a duplicate certificate of practice—Rs. 300.”
3. Subs. by G.S.R. 370(E), dated 8th July, 1997 (w.e.f. 8-7-1997).
4. Subs. by G.S.R. 150(E), dated 4th March, 2014, for sub-rule (1) (w.e.f. 4-3-2014). Earlier sub-rule (1) was substituted by G.S.R. 630(E), dated 21st July, 2000 (w.e.f. 21-7-2000). Sub-rule (1), before substitution by G.S.R. 150(E), dated 4th March, 2014, stood as under:
“(a) for noting an instrument
if the amount of the instrument does not exceed rupees 10,000 —Rs. 35
if it exceeds rupees 10,000 but does not exceed rupees 25,000 —Rs. 75
if it exceeds rupees 25,000 but does not exceed rupees 50,000 —Rs. 110
if it exceeds rupees 50,000 —Rs. 150
(b) for protesting an instrument—
if the amount of the instrument does not exceed rupees 10,000 —Rs. 35
if it exceeds rupees 10,000 but does not exceed rupees 25,000 —Rs. 75
if it exceeds rupees 25,000 but does not exceed rupees 1,00,000 —Rs. 110
if it exceeds rupees 1,00,000 —Rs. 150
(c) for recording a declaration of payment for honour —Rs. 75
(d) duplicate protests —half the charge of original
(e) for verifying, authenticating, certifying or Attesting the execution of any instrument —Rs. 15
(f) for presenting any promissory note, *hundi* or bill of exchange for acceptance or payment or demanding better security —Rs. 35
(g) for administering oath to, or taking affidavit from any person —Rs. 15
(h) for preparing any instrument intended to take effect in any country or place outside India in such form, and language as may conform to the law of the place where such deed is intended to operate —Rs. 150
(i) for attesting or authenticating any instrument to take effect in any country or place outside India in such form and language as may conform to the law of the place where such deed is intended to operate —Rs. 150
(j) for translating and verifying the translation of any document from one language to another —Rs. 75
(k) for noting and drawing up ship's protest, boat protest or protest relating to demurrage and other commercial matters —Rs. 150
(l) for certifying copies of documents as true copies of the original —Rs. 5 per page minimum Rs. 10
(m) for any other notarial act —such sum as the appropriate Government may fix from time to time.”

(a)	For noting an instrument		
	If the amount of the instrument does not exceed rupees 10,000	—	₹ 50
	If it exceeds rupees 10,000 but does not exceed rupees 25,000	—	₹ 100
	If it exceeds rupees 25,000 but does not exceed rupees 50,000	—	₹ 150
	If it exceeds rupees 50,000	—	₹ 200
(b)	For protesting an instrument—		
	If the amount of the instrument does not exceed rupees 10,000	—	₹ 50
	If it exceeds rupees 10,000 but does not exceed rupees 25,000	—	₹ 100
	If it exceeds rupees 25,000 but does not exceed rupees 1,00,000	—	₹ 150
	If it exceeds rupees 1,00,000	—	₹ 200
(c)	For recording a declaration of payment for honour	—	₹ 100
(d)	Duplicate protests	—	half the charge of original
(e)	For verifying, authenticating, certifying or Attesting the execution of any instrument	—	₹ 35
(f)	For presenting any promissory note, <i>hundi</i> or bill of exchange for acceptance or payment or demanding better security	—	₹ 50
(g)	For administering oath to, or taking Affidavit from any person	—	₹ 35
(h)	For preparing any instrument intended to take effect in any country or place outside India in such form, and language as may conform to the law of the place where such deed is intended to operate	—	₹ 200
(i)	For attesting or authenticating any instrument to take effect in any country or place outside India in such form and language as may conform to the law of the place where such deed is intended to operate	—	₹ 200
(j)	For translating and verifying the translation of any document from one language to another	—	₹ 100
(k)	For noting and drawing up ship's protest, boat protest or protest relating to demurrage and other commercial matters	—	₹ 200

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|---|---|--|
| (l) For certifying copies of documents as true copies of the original | — | ₹ 10 per page
minimum ₹ 20 |
| (m) For any other notarial act | — | such sum as
the appropriate
Government
may fix from
time to time.] |

(2) The rates of fees to be charged by a notary shall be displayed by him in conspicuous place inside as well as outside his chamber or office.

(3) In addition to the above fees, a notary may charge the travelling allowance by road or by rail at the rate of ¹[rupees twenty] per kilometre.]

11. Transaction of business by a notary.—(1) A notary in transacting the business under the Act shall use the Forms set forth in the Appendix to these rules.

²[(2) Besides recording declaration of payment for honour a notary shall also register notings and protests made. Every notary shall maintain a Notarial Register in the prescribed Form XV.]

(3) Where any demand of acceptance or payment or better security has been made by a clerk, a notary shall, after examination of the entry in the Register relating to such demand, affix his signature thereto, and cause the clerk to affix his signature also to the entry.

(4) Each notary shall, before bringing the Notarial Register into use, add a certificate on the title page specifying the number of pages it contains. Such certificate shall be signed and dated by the notary.

(5) Every notary shall permit the District Judge or such officer as the appropriate Government from time to time appoint in this behalf to inspect his register at such times, not often than twice a year, as the District Judge or officer may fix. District Judge or officer appointed by the State Government will have power to lodge a report to the appropriate Government for taking action against a notary.

(6) When the original instrument is in a language other than, English, any noting or protest or entry in his register which has to be made in respect of the instrument by a notary may be made either in that language or in English.

(7) In making presentment of bills or notes a notary shall observe the provisions of Chapter V of the Negotiable Instruments Act, 1881 (26 of 1881).

(8) The notary may—

- (1) draw, attest or certify documents under his official seal including conveyance of properties;
- (2) note and certify the general transactions relating to negotiable instruments;
- (3) prepare a Will or other testamentary documents; and
- (4) prepare and take affidavits for various purposes for his notarial acts.

1. Subs. by G.S.R. 150(E), dated 4th March, 2014, for "rupees five" (w.e.f. 4-3-2014).

2. Subs. by S.O. 83, dated 28th December, 1965.

(9) Every notary shall grant a receipt for the fees and charge realised by him and maintain a register showing all the fees and charges realised.

¹[12. **Seal of notary.**—Every notary shall use a plain circular seal of a diameter of 5 cm. as indicated by a drawing given below, bearing his name, the name of the area within which he has been appointed to exercise his functions, the registration number and the circumscription "NOTARY", and the name of the Government which appointed him.]



³[13. **Inquiry into the allegations of professional or other misconduct of a notary.**—⁴[(1) An inquiry into the misconduct of a notary may be initiated either *suo motu* by the appropriate Government or on a complaint received in Form XIII.]

(2) Every such complaint shall contain the following particulars, namely:—

- (a) the acts and omissions which, if proved, would render the person complained against unfit to be a notary;
- (b) the oral or documentary evidence relied upon in support of the allegations made in the complaint.

(3) The appropriate Government shall return a complaint which is not in the proper Form or which does not contain the aforesaid particulars to the complainant for representation after compliance with such objections and within such times as the appropriate Government may specify:

Provided that if the subject-matter in a complaint is, in the opinion of the said Government substantially the same as or covered by, any previous complaint and if there is no additional ground, the said Government shall file the said complaint without any further action and inform the complainant accordingly.

(4) Within sixty days ordinarily of the receipt of complaint, the appropriate Government shall send a copy thereof to the notary at his address as entered in the Register of Notaries.

⁵[(4A) Where an inquiry is initiated, *suo motu* by the appropriate Government, the appropriate Government shall send to the notary a statement

1. Subs. by G.S.R. 370 (E), dated 8th July, 1997 (w.e.f. 8-7-1997).

2. Subs. by G.S.R. 150(E), dated 4th March, 2014, for "Name..... Area..... Regd. No....." (w.e.f. 4-3-2014).

3. Subs. by S.O. 774, dated 9th March, 1957.

4. Subs. by G.S.R. 1056, dated 30th October, 1958.

5. Ins. by G.S.R. 1056, dated 30th October, 1958.

specifying the charge or charges against him, together with particulars of the oral or documentary evidence relied upon in support of such charge or charges.]

(5) ¹[A notary against whom an inquiry has been initiated may, within fourteen days of the service on him of a copy of the complaint under sub-rule (4) or of the statement of the charges under sub-rule (4A) as the case may be,] or within such time as may be extended by the appropriate Government, forward to that Government a written statement in his defence verified in the same manner as a pleading in a civil court.

(6) If on a persual of ²[the written statement,] if any, of the notary concerned and other relevant documents and papers, the appropriate Government consider that there is a *prima facie* case against such notary, the appropriate Government shall cause an inquiry to be made in the matter by the competent authority. If the appropriate Government is of the opinion that there is no *prima facie* case against the notary concerned, ²[the complaint or charge shall be filed] and the complainant and the notary concerned shall be informed accordingly.

³[(7) Every notice issued to a notary under this rule shall be sent to him by registered post. If any such notice is returned unserved with an endorsement indicating that the addressee has refused to accept the notice or the notice is not returned unserved within a period of thirty days from the date of its despatch, the notice shall be deemed to have been duly served upon the notary.]

(8) It shall be the duty of the appropriate Government to place before the competent authority all facts brought to its knowledge which are relevant for the purpose of an inquiry by the competent authority.

(9) A notary who is proceeded against shall have right to defend himself before the competent authority either in person or through a legal practitioner or any other notary.

(10) Except as otherwise provided in these rules, the competent authority shall have the power to regulate his procedure relating to the inquiry in such manner as he considers necessary and during the course of inquiry, may examine witnesses and receive any other oral or documentary evidence.

(11) The competent authority shall submit his report to the Government entrusting him with the inquiry.

(12) (a) The appropriate Government shall consider the report of the competent authority, and if in its opinion a further inquiry is necessary, may cause such further inquiry to be made and a further report submitted by the competent authority.

(b) If after considering the report of the competent authority, the appropriate Government is of the opinion that action should be taken against the notary the appropriate Government may make an order—

(i) cancelling the certificate of practice and perpetually debarring the notary from practice; or

(ii) suspending him from practice for a specified period; or

1. Subs. by G.S.R. 1056, dated 30th October, 1958.

2. Ins. by G.S.R. 1056, dated 30th October, 1958.

3. Subs. by G.S.R. 370(E), dated 8th July, 1997 (w.e.f. 8-7-1997).

- (iii) letting him off with a warning, according to the nature and gravity of the misconduct of the notary proved.

(13) Notification of removal—The removal of the name of any notary from the Register of Notaries from practice, as the case may be, shall be notified in Official Gazette and shall also be communicated in writing to the notary concerned.]

¹[14. Submission of returns.—Every notary shall, in the first week of January every year, submit to the appropriate Government, an annual return in Form XIV of the notarial acts done by him during the preceding year.]

15. Each notary shall have an office within the area mentioned in the certificate issued to him under rule 8 and he shall exhibit it in a conspicuous place thereat a board showing his name and his designation as a notary.

16. If a notary has to deal with a case which does not in terms attract any of the Forms prescribed, the notary should adopt the form nearest to his case with such modifications thereto as he thinks the exceptional peculiarities of the case to justify.

²[17. Annual publication of the list of notaries.—The list of notaries to be published by the Central Government and every State Government under section 6 of the Act, shall be in the following Form:—

Sl. No.	Name of notary	Residential and professional addresses	Qualifications	Area in which he is authorised to practise	Remarks
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³[THE SCHEDULE
[See rule 8(4A)]]

Name of State/Union territory	Maximum number of notaries to be appointed by the Central Government	Maximum number of notaries to be appointed by State Government or Union Territory Administration
(1)	(2)	(3)
1. Andhra Pradesh	⁴ [865]	⁵ [1306]
2. Assam	575	575
3. Bihar	925	⁶ [1925]

1. Subs. by S.O. 1285, dated 20th April, 1957.

2. Ins. by S.O. 854, dated 11th March, 1957.

3. Ins. by G.S.R. 330(E), dated 9th May, 2001 (w.e.f. 10-5-2001).

4. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "575" (w.e.f. 19-4-2016).

5. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "863" (w.e.f. 19-4-2016). Earlier it was amended by G.S.R. 296(E), dated 19th May, 2006 (w.e.f. 19-5-2006).

6. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "925" (w.e.f. 19-4-2016).

(1)	(2)	(3)
4. Gujarat	¹ [1760]	² [1407]
5. Kerala	³ [1000]	⁴ [1000]
6. Madhya Pradesh	1125	⁵ [2500]
7. Tamil Nadu	⁶ [1360]	⁷ [2500]
8. Maharashtra	⁸ [3700]	⁹ [1313]
9. Karnataka	¹⁰ [1266]	¹¹ [1013]
10. Orissa	750	750
11. Punjab	¹² [1197]	425
12. Rajasthan	¹³ [1500]	¹⁴ [2000]
13. Uttar Pradesh	¹⁵ [2188]	¹⁶ [2625]

1. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "1173" (w.e.f. 19-4-2016). Earlier it was substituted by G.S.R. 662(E), dated 31st August, 2012, for "938" (w.e.f. 31-8-2012) and by G.S.R. 764(E), dated 3rd November, 2008 (w.e.f. 3-11-2008).
2. Subs. by G.S.R. 636(E), dated 3rd September, 2008 (w.e.f. 3-9-2008). Earlier it was substituted by G.S.R. 319(E), dated 1st May, 2007 (w.e.f. 1-5-2007) as corrected by Corrigendum G.S.R. 330(E), dated 8th May, 2007.
3. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "704" (w.e.f. 19-4-2016). Earlier it was substituted by G.S.R. 662(E), dated 31st August, 2012, for "563" (w.e.f. 31-8-2012) and by G.S.R. 636(E), dated 3rd September, 2008 (w.e.f. 3-9-2008).
4. Subs. by G.S.R. 662(E), dated 31st August, 2012, for "845" (w.e.f. 31-8-2012). Earlier it was substituted by G.S.R. 686(E), dated 31st October, 2007 (w.e.f. 31-10-2007) and G.S.R. 296(E), dated 19th May, 2006 (w.e.f. 19-5-2006).
5. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "1688" (w.e.f. 19-4-2016). Earlier it was substituted by G.S.R. 296(E), dated 19th May, 2006 (w.e.f. 19-5-2006).
6. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "907" (w.e.f. 19-4-2016). Earlier it was substituted by G.S.R. 662(E), dated 31st August, 2012, for "725" (w.e.f. 31-8-2012).
7. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "1088" (w.e.f. 19-4-2016). Earlier it was substituted by G.S.R. 296(E), dated 19th May, 2006 (w.e.f. 19-5-2006).
8. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "2463" (w.e.f. 19-4-2016). Earlier it was substituted by G.S.R. 662(E), dated 31st August, 2012, for "1970" (w.e.f. 31-8-2012) and by G.S.R. 764(E), dated 3rd November, 2008 (w.e.f. 3-11-2008) and by G.S.R. 51(E), dated 23rd January, 2008 (w.e.f. 23-1-2008).
9. Subs. by G.S.R. 296(E), dated 19th May, 2006 (w.e.f. 19-5-2006).
10. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "844" (w.e.f. 19-4-2016). Earlier it was substituted by G.S.R. 662(E), dated 31st August, 2012, for "675" (w.e.f. 31-8-2012).
11. Subs. by G.S.R. 686(E), dated 31st October, 2007 (w.e.f. 31-10-2007).
12. Subs. by G.S.R. 662(E), dated 31st August, 2012, for "957" (w.e.f. 31-8-2012). Earlier it was substituted by G.S.R. 51(E), dated 23rd January, 2008 (w.e.f. 23-1-2008) and G.S.R. 296(E), dated 19th May, 2006 (w.e.f. 19-5-2006).
13. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "1000" (w.e.f. 19-4-2016). Earlier it was substituted by G.S.R. 662(E), dated 31st August, 2012, for "800" (w.e.f. 31-8-2012).
14. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "1200" (w.e.f. 19-4-2016). Earlier it was substituted by G.S.R. 319(E), dated 1st May, 2007 (w.e.f. 1-5-2007) as corrected by corrigendum G.S.R. 330(E), dated 8th May, 2007.
15. Subs. by G.S.R. 662(E), dated 31st August, 2012, for "1750" (w.e.f. 31-8-2012).
16. Subs. by G.S.R. 86(E), dated 8th February, 2007 (w.e.f. 8-2-2007).

(1)	(2)	(3)
14. West Bengal	450	¹ [3625]
15. Jammu & Kashmir	350	² [525]
16. Nagaland	200	200
17. Haryana	³ [1338]	475
18. Himachal Pradesh	300	⁴ [450]
19. Manipur	225	225
20. Tripura	100	100
21. Meghalaya	175	175
22. Sikkim	100	100
23. Mizoram	200	200
24. Arunachal Pradesh	325	325
25. Goa	⁵ [63]	⁶ [350]
26. Uttaranchal	325	325
27. Chhattisgarh	400	⁷ [1350]
28. Jharkhand	450	450
29. Delhi	⁸ [1000]	⁹ [325]
30. Andaman and Nicobar Islands	50	50
31. Lakshadweep	25	25
32. Dadra and Nagar Haveli	25	25
33. Daman & Diu	50	50
34. Pondicherry	100	100
35. Chandigarh	¹⁰ [108]	25.]

1. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "2625" (w.e.f. 19-4-2016).
2. Subs. by G.S.R. 636(E), dated 3rd September, 2008 (w.e.f. 3-9-2008).
3. Subs. by G.S.R. 662(E), dated 31st August, 2012, for "1070" (w.e.f. 31-8-2012). Earlier it was substituted by G.S.R. 764(E), dated 3rd November, 2008 (w.e.f. 3-11-2008) and G.S.R. 296(E), dated 19th May, 2006 (w.e.f. 19-5-2006).
4. Subs. by G.S.R. 764(E), dated 3rd November, 2008 (w.e.f. 3-11-2008).
5. Subs. by G.S.R. 662(E), dated 31st August, 2012, for "50" (w.e.f. 31-8-2012).
6. Subs. by G.S.R. 662(E), dated 31st August, 2012, for "250" (w.e.f. 31-8-2012). Earlier it was substituted by G.S.R. 764(E), dated 3rd November, 2008 (w.e.f. 3-11-2008).
7. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "600" (w.e.f. 19-4-2016). Earlier it was substituted by G.S.R. 296(E), dated 19th May, 2006 (w.e.f. 19-5-2006).
8. Subs. by G.S.R. 429(E), dated 18th April, 2016, for "610" (w.e.f. 19-4-2016). Earlier it was substituted by G.S.R. 662(E), dated 31st August, 2012, for "488" (w.e.f. 31-8-2012) and by G.S.R. 296(E), dated 19th May, 2006 (w.e.f. 19-5-2006) and by G.S.R. 460(E), dated 25th June, 2001 (w.e.f. 26-6-2001).
9. Subs. by G.S.R. 460(E), dated 25th June, 2001 (w.e.f. 26-6-2001).
10. Subs. by G.S.R. 662(E), dated 31st August, 2012, for "86" (w.e.f. 31-8-2012). Earlier it was substituted by G.S.R. 764(E), dated 3rd November, 2008 (w.e.f. 3-11-2008), G.S.R. 686(E), dated 31st October, 2007 (w.e.f. 31-10-2007) and G.S.R. 296(E), dated 19th May, 2006 (w.e.f. 19-5-2006).

**¹[FORM I
MEMORIAL
(See rule 4(2))**

1. Name of the applicant
2. Father's/Husband's name
3. Date of Birth
4. Whether SC/ST/OBC/General
5. Address (residence)
- Pin
- Telephone Fax E-Mail.....
- Address (Office)
- Pin.....
- Telephone Fax E-Mail.....
6. Educational Qualifications (Please attach attested photocopies)
7. Enrolment number & date (Please attach attested photocopies)
8. Practising in.....
- Civil side.....
- Criminal side.....
- Taxation.....
- Revenue Courts.....
9. Whether Income-tax assessee.....
10. The memorial of (name of the applicant in block letters) sheweth.....
1. that the memorialist is a person eligible for appointment as a notary under the Notaries Act, 1952, and clause (a) of rule 3 of the Notaries Rules, 1956;
2. that the memorialist resides in.....
(here state the name of the local area or name of court where he intends to practise) and will reside for upwards of.....(state how long);
3. that the number of notaries practising in the local area is insufficient for the requirements thereof (the grounds of the statement should be added);
4. that no previous application of the memorialist has been rejected or withdrawn by him, within the preceding six months;

PHOTOGRAPH

The memorialist, therefore, prays that the Government be pleased to appoint and admit him as a notary under and by virtue of the Notaries Act, 1952 (53 of 1952), and clause (a) of rule 3 of the Notaries Rules, 1956, to practise in.....
(here state the name of the local area).

Dated.....day of.....20....

.....
Signature of the applicant

Name and address of signatories	Profession	Name and address of the firm/organisation	Signature with seal
1.			
2.			
3.			
4.			
5.			

Note.—Under rule 4(3) the memorial should be countersigned by a Magistrate, a manager of a Nationalised Bank, a merchant and two prominent inhabitants of the area where he intends to practise as a notary.]

**¹[FORM II
(See rule 4(2))**

1. Name of the applicant
2. Father's/Husband's name
3. Date of Birth
4. Whether SC/ST/OBC/General.....
5. Address (residence)
-

PHOTOGRAPH

FORM III**FORM OF NOTING FOR DISHONOUR**

(See section 8)

(To be made upon the instrument or upon a paper attached thereto,
or partly upon each.)

Reference to page in Notarial Register.....

Date of presentment and dishonour by non-acceptance/ non-payment.....

Reason, if any, assigned for dishonour (or, if the instrument has not been expressly
dishonoured, reason why holder treats it as dishonoured.)

Date of note.....

.....
Signature of notary

Notary's charges.

FORM IIIA**FORM OF NOTING FOR DISHONOUR**

(See section 8)

(To be entered in the Notarial Register)

(Copy of the bill and endorsements)

On the day of..... 20.... the above bill was, at the request of.....(here give the
name), presented by me for acceptance to.....(here give the name), the drawee
personally (at his residence or usual place of business) in.....(town or village) and, I
received, the following answer:—.....
(The said bill is, therefore, noted for non-acceptance.)

Place and date.....

.....
Signature of notary(This note is to be signed in the margin by the notary's clerk also if he presented
the bill.)**FORM IV****FORM OF PROTEST OF BILL OF EXCHANGE FOR NON-ACCEPTANCE**

(See section 8)

On theday of.....20..... I,.....(here give the
name), notary appointed under the Notary Act, 1952, of.....
in.....(here state the local area for which the notary has been appointed)
in.....at the request of.....(here give the name) of.....did,
at.....in person, and having failed to do so, then by registered letter cause due
and customary presentment to be made to, and did demand acceptance of the bill of
exchange hereto annexed (or "a literal transcript whereof and of everything written or
printed thereon is hereto annexed") from.....(here give the name), the person upon
whom the said bill is drawn, to which demand he made answer (state terms of answer,
if any) (or "to which demand he gave no answer") wherefore, I, the said notary, at the
request aforesaid, by this writing, do, in the presence of.....(here give the name)
and.....(here give the name), witnesses, protest the drawer of the said bill of exchange
and all other parties thereto and all others concerned for all exchange,

re-exchange, and all costs, damages, and interest present and to come for want of acceptance of the said bill.

Which I attest

.....

Signature of notary

Place and date

Signatures of witnesses
(should be of the locality)

1.

2.

FORM IVA

FORM OF ACTS OF HONOUR

(a) Act of honour on acceptance. (To be written at the foot of the protest).

Afterwards appeared before me, the said notary, on the..... day of 20.....,(here give the name), and declared that he would accept the bill of exchange before protested under protest for the honour and upon the account of.....(here give the name), the second endorser on the said bill.

Holding the second endorser and all others concerned always bound and obliged to indemnify him, the said appearer, for his said acceptance and in case of payment of by him, for his re-imbursement in due form of law and according to custom.

Which I attest

.....

Signature of notary

Place and date

(b) Act of honour on payment. (To be written at the foot of the protest).

Afterwards appeared before me, the said notary, on the.....day of.....20...., (here give the name), and declared that he would pay the bill of exchange before protested under protest for the honour and upon the account of.....(here give the name), the endorser on the said bill.

Holding the said endorser and all others concerned always bound and obliged for reimbursement in due form of law and according to custom.

Amount Rs.....

Notarial charges Rs.....

Which I attest

.....

Signature of notary

Place and date

Received this.....day of.....20....., from(here give the name), the sum of Rs....., the amount of the said bill and notarial charges thereon.

.....

Signature of notary

FORM V

FORM OF PROTEST OF BILL OF EXCHANGE FOR NON-ACCEPTANCE
WHEN THE DRAWEE CANNOT BE FOUND

(See section 8)

(a) Where search was made by notary in person.

On the.....day of.....20....., I..... (here give the name), a notary appointed under the Notaries Act, 1952, of.....in.....(here state the local area for which the notary has been appointed) in..... at the request of.....(here give the name), of....., did in person make due search at.....for.....(here give the name), in order to present to and demand from him acceptance of the bill of exchange hereto annexed (or "a literal transcript whereof and of everything written or printed thereon is hereto annexed") which is drawn upon the said.....(here give the name), but was unable to find him; wherefore I, the said notary, at the request aforesaid, by this writing, do in the presence of.....(here give the name), and.....(here give the name), witnesses, protest against the drawer of the said bill of exchange and all other parties thereto and all others concerned for all exchange, re-exchange and all costs, damages and interest present and to come for want of acceptance of the said bill.

Which I attest

.....
Signature of notary

Place and date

Signatures of witnesses

(should be of the locality)

1.

2.

(b) Where registered letter was sent to the drawee.

On the.....day of.....20....., I.....(here give the name), a notary appointed under the Notaries Act, 1952, of.....in.....(here state the local area for which the notary has been appointed) in.....at the request of.....(here give the name), of....., did send by post a registered letter addressed to.....(here give the name) at.....wherein I enclosed and demanded from him acceptance of the bill of exchange hereto annexed (or "a literal transcript whereof and of everything written or printed thereon is hereto annexed") which is drawn upon the said..... (here give the name) but the letter was returned undelivered because the said.....(here give the name) could not be found; wherefore I, the said notary at the request aforesaid, by this writing, do in the presence of.....(here give the name) and.....(here give the name), witnesses, protest against the drawer of the said bill of exchange and all other parties thereto and all others concerned for all exchange, re-exchange, and all costs, damages and interest present and to come for want of acceptance of the said bill.

Which I attest

.....
Signature of notary

Place and date

Signatures of witnesses

(should be of the locality)

1.

2.

FORM VI

FORM OF PROTEST OF PROMISSORY NOTE OR BILL OF
EXCHANGE FOR NON-PAYMENT

(See section 8)

On the.....day of.....20..... I,(here give the name),
a notary appointed under the Notaries Act, 1952, of.....
in.....(here state the local area for which the notary has been appointed)
in.....at the request of(here give the name), of.....did
at.....in person and having failed to do so, then by registered letter, cause due
and customary presentment to be made to and did demand payment of the promissory
note (or bill of exchange, as the case may be) hereto annexed (or "a literal transcript
whereof, and of everything written or printed) thereon is hereto annexed")
from.....(here give the name) the maker of the said promissory note (or
drawee, acceptor, of the said bill of exchange, as the case may be), to which demand he
made answer (state the terms of his answer, if any) or "to which demand he gave
answer"); wherefore I, the said notary, at the request aforesaid by this writing, do in the
presence of(here give the name),
and.....(here give the name), witnesses protest against the maker of the
said promissory note (or the drawer of the said bill of exchange, as the case may be) and
all other parties thereto and all others concerned for all exchange, re-exchange, and all
costs, damages and interest present and to come for want of payment of the said
promissory note (or bill of exchange, as the case may be).

Which I attest

Signature of notary

Place and date

Signatures of witnesses
(should be of the locality)

1.

2.

FORM VII

FORM OF PROTEST OF PROMISSORY NOTE OR BILL OF EXCHANGE
FOR NON-PAYMENT WHEN THE MAKER, DRAWEE, OR ACCEPTOR
(AS THE CASE MAY BE) CANNOT BE FOUND

(See section 8)

(a) Where search was made by notary in person.

On the.....day of....., 20.....
I,.....(here give the name), a notary appointed under the
Notaries Act, 1952, ofin(here state the local
area for which the notary has been appointed) in.....at the request
of.....(here given the name) of.....did in person make due
search atfor.....(here give the name), the maker (or
drawee, or acceptor, as the case may be) in order to present to and demand from him
payment of the promissory note (or bill of exchange, as the case may be) hereto annexed
(or "a literal transcript whereof and of everything written or printed thereon is hereto
annexed") but was unable to find him; wherefore, I, the said notary, at the request
aforesaid, by this writing, do, in the presence of.....(here give
the name) and.....(here give the name), witnesses, protest against the

maker of the said promissory note (or drawer of said bill of exchange as the case may be) and all other parties thereto and all others, concerned for all exchange, re-exchange, and all costs, damages, the interest present and to come for want of payment of the said promissory note (or bill of exchange, as the case may be).

Which I attest

Signature of notary

Place and date

Signatures of witnesses

(should be of the locality)

1.

2.

(b) Where registered letter was sent to the maker, drawee or acceptor.

On.....day of.....20..... I, (here give the name), a notary appointed under the Notaries Act, 1952, of.....in.....(here state the local area for which the notary has been appointed) in.....at the request of.....(here give the name), of.....did sent by post a registered letter addressed to.....(here give the name) the name) at.....the maker (or drawee, acceptor, as the case may be), wherein I enclosed and demanded from him payment of the promissory note (or bill of exchange as the case may be), hereto annexed (or "a literal transcript whereof and of everything written or printed thereon is hereto annexed"), but the letter was returned undelivered because the said.....(here give the name), could not be found; wherefore; I, the said notary, at the request aforesaid, by this writing, do, in the presence of(here give the name) and(here give the name) witnesses, protest against the maker of the said promissory note (or the drawer of the said bill of exchange, as the case may be) and all other parties thereto and all others concerned for all exchange, re-exchange, and all costs, damages, and interest present and to come for want of payment of the said promissory note (or bill of exchange, as the case may be).

Which I attest

Signature of notary

Place and date

Signatures of witnesses

(should be of the locality)

1.

2.

FORM VIII

FORM OF PROTEST OF BILL OF EXCHANGE FOR BETTER SECURITY

(See section 8)

On the.....day of.....20.....I, (here give the name), a notary appointed under the Notaries Act, 1952, of.....in.....(here state the local area for which the notary has been appointed in at the request of(here give the name), did exhibit the bill of exchange hereto annexed (or "a literal transcript whereof and of everything written or printed therein is hereto annexed") to (here give the name), the person on

whom the said bill is drawn, and whose acceptance appears thereon, and did demand better security for the payment thereof when the same should become payable in consequence of the said(here give the name), having become insolvent (or "his credit having been publicly impeached", as the case may be), to which demand he made answer, (state the terms of the answer if any) or ("to which demand he gave no answer"); wherefore; I, the said notary, at the request aforesaid, by this writing, do, in the presence of.....(here give the name) and.....(here give the name), witnesses, protest against the drawer of the said bill of exchange and the acceptor and all other parties thereto, and all others concerned for all exchange, re-exchange, and all costs, damages, and interest present and to come for want of better security for the payment of the said bill when due and payable.

Which I attest

.....

Signature of notary

Place and date

Signatures of witnesses

(should be of the locality)

1.

2.

FORM IX

FORM OF PROTEST OF BILL OF EXCHANGE FOR BETTER SECURITY WHEN THE ACCEPTOR CANNOT BE FOUND

(See section 8)

(a) Where such protest was made by notary in person.

On theday of..... 20.....I,.....(here give the name), a notary appointed under the Notaries Act, 1952, of..... in.....(here state the local area for which the notary has been appointed) in.....at the request of.....(here give the name), of.....did not in person make due search at.....for(here give the name), in order to exhibit the bill of exchange hereto annexed (or "a literal transcript whereof and of everything written or printed thereon is hereto annexed") to the said (here give the name) the person on whom the said bill is drawn, and whose acceptance appears thereon, and demand better security for the payment thereof, when the same should become payable in consequence of his having become insolvent (or "his credit having been publically impeached", as the case may be), but was unable to find him; wherefore; I, the said notary, at the request aforesaid, by this writing, do, in the presence of.....(here give the name) and.....(here give the name) witnesses, protest against the drawer of the said bill of exchange and the acceptor and all other parties thereto and all others concerned for all exchange, re-exchange, and all costs, damages, and interest present and to come for want of better security for the payment of the said bill when due and payable.

Which I attest

.....

Signature of notary

Place and date

Signatures of witnesses

(should be of the locality)

1.

2.

(b) Where registered letter was sent to the acceptor.

On theday of20.... I,.....(here give the name), a notary appointed under the Notaries Act, 1952, of in.....(here state the local area for which the notary has been appointed) in.....at the request of.....(here give the name), of.....did send by post a registered letter addressed to.....(here give the name), at.....wherein I enclosed the bill of exchange hereto annexed (or "a literal transcript whereof and of everything written or printed thereon is hereto annexed"), and did by such letter demand from the said.....(here give the name), the person on whom the said bill is drawn and whose acceptance appears thereon, better security for the payment thereof when the same should become payable in consequence of his having become insolvent (or "his credit having been publicly impeached", as the case may be), but the said letter was returned undelivered because the said.....(here give the name) could not be found; wherefore; I, the said notary, at the request aforesaid, by this writing, do, in the presence of.....(here give the name) and.....(here give the name), witnesses, protest against the drawer of the said bill of exchange and the acceptor and all other parties thereto and all others concerned for all exchange, re-exchange, and all costs, damages and interest present and to come for want of better security for the payment of the said bill when due and payable.

Which I attest

.....

Signature of notary

Place and date

Signatures of witnesses

(should be of the locality)

1.

2.

FORM X

FORM OF NOTICE OF PROTEST TO DRAWER TO BE GIVEN BY A NOTARY

(See section 8)

Take notice that a bill of exchange for.....(here state the amount) drawn by you under date the.....on.....and payable at..... has been dishonoured by non-acceptance (or non-payment, as the case may be) and protested, and that you will be held liable thereon.

.....

Signature of notary

Place and date

FORM XI

FORM OF NOTICE OF PROTEST TO ENDORSER TO BE GIVEN BY A NOTARY

(See section 8)

Take notice that a bill of exchange for.....(here state the amount) drawn by..... under date theon..... and payable at.....and bearing your endorsement has been dishonoured by

non-acceptance (or non-payment, as the case may be) and protested, and that you will be held liable thereon.

.....
Signature of notary

Place and date

FORM XII

FORM OF NOTARIAL ACT OF DECLARATION HAVING BEEN MADE BY A PAYER FOR HONOUR

(See section 8)

On the.....day of..... 20..... I, (here give the name), a notary appointed under the Notaries Act, 1952, of in (here state the local area for which the notary has been appointed) in..... do hereby certify that the bill of exchange hereto annexed (or "a literal transcript whereof and of everything written or printed thereon is hereto annexed") (now protested for non-payment) was this day exhibited to.....(here give the name), ofin the State of..... (or to..... (here give the name), his agent in this behalf, as the case may be), who declared before me that he, the said.....(here give the name), would pay the amount of the said bill under protest for the honour of(here insert the name of the party for whose honour the payment is to be made), holding the said.....(here insert the name of the party for whose honour the payment is to be made) and the drawer and all other proper persons responsible to him, the said..... (here give the name), for the amount of the said bill and for all proper costs, interest, damages, and expenses; I have, therefore, in the presence of..... (here give the name) and..... (here give the name), witnesses, granted this notarial act of honour accordingly.

Which I attest

.....

Signature of notary

Place and date

Signatures of witnesses
(should be of the locality)

1.

2.

¹[FORM XIII

FORM OF COMPLAINT

Before the appropriate Government under the Notaries Act, 1952

Between.....Petitioner

and.....Respondent

Petitioner's address

Respondent's address

Particulars of complaint in

Paragraphs consecutively numbered

Particulars of evidence oral and

Documentary, if any, to substantiate the complaint

1. Ins. by S.O. 774, dated 8th March, 1957.

Verification

I,....., the petitioner to hereby declare that what is stated above is true to the best of my information and belief.

Verified today the.....day of..... 20..... at.....

.....
Signature.]

[FORM XIV

FORM OF RETURN TO BE SUBMITTED BY A NOTARY

(See rule 14)

1. Name and address of notary
2. Registration number
3. Particulars of notarial acts done during the year

Type of work	Name of cases	Fee charged
--------------	---------------	-------------

1. Noting an instrument
2. Protesting an instrument
3. Recording a declaration of payment for honour
4. Duplicate protests
5. Verifying, authenticating, certifying or attesting the execution of any instrument
6. Presenting any promissory note, hundi or bill of exchange for acceptance or payment or demanding better security
7. Administering oath to, or taking affidavit from any person
8. Preparing any instrument intended to take effect in any country or place outside India in such form and language as may conform to the law of the place where such deed is intended to operate
9. Attesting or authenticating any instrument intended to take effect in any country or place outside India in such form and language as may conform to the law of the place where such deed is intended to operate

10. Translating and verifying the translation of, any document from one language into another

11. Other notarial acts.

Signature of Notary

Date and Place.....]

¹[FORM XV

NOTARIAL REGISTER

[See rule 11(2)]

Sl. No.	Date	Name of notarial act	Name of executant or person concerned with full address	Contents of document	Notarial fee-stamp affixed	Prescribed fee	Fee charged	Sl. No. of Receipt Book	Signature of person concerned	Signature of notary
1	2	3	4	5	6	7	8	9	10	11

1. Ins. by S.O. 83, dated, 28th December, 1965.